

Civil Misc. Writ Petition No. 56999 of 2005

M/S Tej International Pvt. Ltd.
Vs.
U.P. Power Corporation and others

HON. SHISHIR KUMAR, J.

Heard the learned counsel for the petitioner. In spite of revising the list, nobody appears on behalf of the respondents to argue the matter, as such, the matter is being heard and decided on merit.

The petitioner is running the business in the name of M/S Tej International Private Ltd. registered under the Companies Act. Another unit in the same premises was established in the name of Tej Shoes Factory. Petitioner had applied for new connection of 125 KVA load in the name of Tej Shoes Factory and vide Sanction no. 6807 dated 13.5.2002 a load of 125 KVA was sanctioned to the petitioner. An estimate was furnished by the Executive Engineer and the amount was assessed. On 8.8.2002 the Executive Engineer has advised the petitioner in the capacity of partner of Tej Shoes Factory that as both the concerns are in the same premises and they are not the separate units, therefore, he has been advised to deposit the arrears of Rs.1,12,309.00 of Tej International Pvt. Ltd. and in place of new connection with the name of Tej Shoes to get sanction load of 300 KVA of Tej International enhanced up to the extent of 125 KVA so that the total load may be 425 KVA. An inspection was made and it was alleged by the inspecting party that a load of 20 KVA was found being used in the manufacturing of shoes to the adjacent premises. The connection of the petitioner was disconnected on 6.7.2003 and subsequently it was restored and again it was disconnected on 3.8.2008.

The petitioner was assessed for unauthorized use of the power under the Electricity Supply Code of 2002 read with Clause 6.20 and an assessment was made for 5,71,770.00. The petitioner has deposited Rs. 3

lacs and made a request to the competent authority to restore the power connection and the power connection of the petitioner was restored on 11.8.2003 and assessment was made three times. The demand of Rs.5,75,658.00 was made from the petitioner. The petitioner aggrieved by the aforesaid order filed an appeal. The appeal too has been dismissed without giving any reason.

I have perused the order and from the perusal of the order it appears that while considering the claim of the petitioner in appeal, the proper reasoning has not been given and without giving any reason the appeal filed by the petitioner has been rejected. This clearly goes to show that the order can be treated an order of non-application of mind without assigning any cogent reason. In the Constitution Bench judgment of the Apex Court in the case of **S.N. Mukherji Vs. Union of India** (A.I.R.1990 S.C. 1984), the Apex Court has held that the Administrative Authorities while passing the order are duty bound to record reasons. Unless and until the reasoning are there, the petitioner has no opportunity to assail it before the appellate court to say regarding the illegality committed by the authorities below.

In view of the aforesaid fact, the writ petition is allowed and the order dated 26.3.2004, Annexure 9 to the writ petition passed by the appellate authority is hereby quashed and the matter is remanded back to the appellate authority to decide it on merit after giving full opportunity to the petitioner by giving detailed reasons within a period of three months from the date of production of a certified copy of this order before him.

No order is passed as to costs.

3.11.2009

V.Sri/-